

has been granted on filing the claim. See the above 4th Order, which is copied from the English 13th Order.

One particular in which the practice will be found to vary, is this. Here the original plaint is still a bill, and may be answered; and it remains to be seen how far an answer filed will operate as an objection to the motion, or whether the Court will look into it, and consider whether under the facts disclosed the cause ought to be brought to a hearing on evidence, instead of a summary reference being made. It is apprehended, that the Court must discharge the motion, if the answer sets up a substantial defence to the relief sought, and that in short the answer will be treated as an affidavit made to oppose the motion. The Court has intimated that the answer will be looked upon as an affidavit; and therefore, it is supposed, it may be rebutted by affidavits of the plaintiff. In England, it seems, there can be no *answers* properly so called, but, under Order XV. of April, 1850, the Court, if the case seems one which should be proceeded with by bill and answer, and evidence, in the old way, directs a bill to be filed. The practice here, giving, as it does, a large discretion to the Bench in dealing with each case, will probably be found more speedy than the other. But here, if on the answer, or defendant's affidavit, it seems doubtful whether the case requires evidence, the Order for the summary reference will not, it seems, be made. The disposition of the Court appears to be, to confine these references, to cases which are in the main points undisputed.

Another leading distinction is, that in England the proceeding is still by bill with interrogatories, and answer, except in cases coming under the provisions of Order 1, or where the Court gives leave to file a claim. This leave is asked for by an application of the plaintiff *ex parte*, and the Court gives the permission or refuses it, on reading the proposed claim, (English Order 6.) Here, on the contrary, the old form of bill and answer is completely abolished; and the practice by summary reference is confined to the cases coming within Order 1. It

Effect of
answer filed
before motion.

Practice in
England when
bill considered
requisite.

Leave to file
claims in
England.